

25CV07301 Theresa Colosi, MD vs Montecito Bank & Trust MBT et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-10

Motion: CMC; Motion Change Venue; Motion to Strike

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Tentative Ruling: Theresa Colosi, MD vs Montecito Bank & Trust MBT et al

Case Number

25CV07301

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/10/2026 - 10:00

Nature of Proceedings

CMC; Motion Change Venue; Motion to Strike

Tentative Ruling

For all reasons stated herein:

(1) The motion of defendant California Medical Board to transfer venue is granted. Venue of this action shall be transferred to the Superior Court for the County of Los Angeles, Central District, Stanley Mosk Courthouse.

(2) The motion of defendant Montecito Bank & Trust to sever is denied. The court declines to sever the claims against Montecito Bank & Trust prior to the transfer of venue to Los Angeles.

(3) All pending motions and hearings in this action, including the California Medical Board's demurrer and motion to strike set for August 28, 2026, are ordered off calendar.

Background:

(1) Underlying Criminal Proceeding

The following background is summarized from the October 13, 2023, minute order

entered by this court in *Montecito Bank & Trust v. Theresa Colosi, et al.*, Santa Barbara Superior Court case No. 22CV04591 (Interpleader Action). (See MBT Compendium of Exhibits in Support of Its Motion for Security [Compendium], Ex. 1.)

Starting in May 2019, defendant Cynthia Hann (Hann) was designated and hired to supervise Colosi's scheduled visitations with her son, John Doe. (Compendium, Ex. 1 at p. 2.) On December 8, 2019, Hann was scheduled to supervise a 3-hour visit between Colosi and John Doe. (Ibid.) Hann, John Doe, and Colosi initially met at a coffee shop in Santa Barbara. (Ibid.) Colosi then asked to spend the remainder of the time together at Zodo's Bowling and Beyond (Zodo's) in Goleta. (Ibid.) After arriving at Zodo's, and while still in the parking lot, Colosi suddenly attacked Hann by repeatedly striking her on the head with a metal CO2 canister. (Ibid.)

On December 23, 2019, Colosi was charged with five counts, including (1) Count 1, attempted murder [Pen. Code, §§ 664/187(a)], a felony, (2) Count 2, assault with a deadly weapon [Pen. Code, § 245(a)(1)], a felony, (3) Count 3, attempted kidnapping of a child under 14 [Pen. Code §§ 664/207(a)/(e)], a felony, (4) Count 4, attempted child stealing [Pen. Code, §§ 664/278], a felony, and (5) Count 5, disobeying domestic relations court order [Pen. Code § 273.6(a)], a misdemeanor. (*People v. Colosi*, Santa Barbara Superior Court Case No. 19CR12190 [Underlying Criminal Proceeding]). (Compendium, Ex. 1 at p. 2.)

Colosi eventually pleaded guilty to assault with personal use of a deadly weapon, a felony, and admitted the special allegation of causing great bodily injury. (Compendium, Ex. 1 at pp. 2–4.) In return, the remaining counts were dismissed and a sentence of five years imprisonment imposed. (Ibid.)

(2) Interpleader Action

Colosi had planned to abduct John Doe and flee, and had previously chartered a

private plane to fly them from Lompoc to Montana. (Compendium, Ex. 1 at p. 2.) However, Hann and John Doe were able to escape and run into Zodo's until the police and paramedics arrived. (Ibid.) Colosi fled from the premises, and did in fact take the private jet from Lompoc to Montana. (Ibid.) Colosi was eventually arrested by Montana authorities and extradited to Santa Barbara. (Ibid.)

Before fleeing to Montana, Colosi, who had accounts with MBT, purchased approximately \$1.3 million of cashier's checks from MBT. (Compendium, Ex. 1 at pp. 2-3.) The checks were seized by law enforcement. (Ibid.) On November 17, 2022, MBT filed the Interpleader Action to deposit with the Court the funds that MBT was holding to back the checks. (Id. at p. 3.)

On June 2, 2023, Colosi filed a document styled, "Response and Opposition to Interpleader, Request for Permanent Injunction." (Compendium, Ex. 18.) Colosi generally alleged that MBT provided information about her financial accounts and purchase of cashier's checks to law enforcement in response to a search warrant, which prosecutors then used against her in criminal proceedings. (Id. at p. 2.) She accused MBT of fraudulently depositing the interpleaded funds with the court. (Id. at p. 4.)

On June 12, 2023, Colosi filed a motion for permanent injunction in the Interpleader Action. (Compendium, Ex. 19.) Colosi contended that MBT was violating her constitutional rights and various financial privacy statutes, but offered no plausible

argument in support of the motion. (Ibid.) The court denied Colosi's motion for injunction because it was procedurally improper and unsupported by evidence. (Compendium, Ex. 21.)

On August 10, 2023, Colosi filed a motion to compel responses to requests for production in the Interpleader Action and requested sanctions in the amount of \$24,000. (Compendium, Ex. 27.) On September 12, 2023, Colosi filed a motion to dismiss the Interpleader Action. (Compendium, Ex. 23.) The motion to dismiss sought orders dismissing the interpleader action, restoring the transferred funds, and sealing all records in the action. (Ibid.) The motion was based upon the argument, in part, that Colosi's financial privacy rights were violated and had not been waived. (Ibid.) On September 29, 2023, Colosi issued four subpoenas for in-person testimony and the production of documents, to four MBT personnel. (Compendium, Ex. 28.) Colosi then issued another two subpoenas to MBT personnel for appearance and the production of documents on October 13, 2023. (Compendium, Ex. 29.)

On October 13, 2023, this court denied Colosi's motion to compel and motion to dismiss, finding that, "Colosi's document request was improperly propounded within the interpleader action." (Compendium, Ex. 1 at p. 21.) This court noted, "[n]one of the information Colosi seeks has even the remotest of relevance to any issue in the interpleader action." (Id. at p. 22.) This court also ordered that no appearances or production were required, because there was "no legitimate reason to subpoena witnesses for appearance at the current civil law and motion proceedings." (Id. at p. 20.) The court further ruled, "[b]ecause the Court has determined that this is an appropriate action for interpleader of the funds, because MBT has disavowed any claim to the funds, and because MBT has followed the proper procedures for interpleader of the funds, the Court will grant the motion for discharge" (Id. at p. 18.)

On November 1, 2023, the court issued an order following the October 13 hearing and granted MBT's motion for discharge of liability with respect to the interpleaded funds and denied Colosi's motion to dismiss. (Compendium, Ex. 2.) The court ruled that MBT's action was a "classic circumstance for interpleader." (Compendium, Ex. 1 at p. 17.) The court's ruling "discharged [MBT] from all liability on or arising out of the rights and obligations of the parties to this action with respect to the \$1,345,454.33 deposited with the clerk of this Court and Plaintiff's cashier's checks associated with those funds...." (Compendium, Ex. 2 at p. 2.)

Colosi later subpoenaed Rafael Gonzalez, counsel for MBT in the Interpleader Action, to testify at the trial on claims to the interpleaded funds, and demanding that he produce the same or similar documents Colosi had requested in earlier subpoenas. (Compendium, Ex. 30.) On June 10, 2024, this court quashed this subpoena. (Compendium, Ex. 31.)

On November 3, 2025, Colosi filed a motion to set aside all judgments and orders of the trial court and to order MBT to restore Colosi's property at issue in the Interpleader Action. (Compendium, Ex. 5.) Colosi argued, among other points, that her financial privacy rights were violated in the Underlying Criminal Proceeding as to a search warrant served on MBT. (Ibid.)

On November 10, 2025, Colosi served four more subpoenas in the Interpleader Action, demanding testimony and documents from MBT's President and CEO, and three board members of MBT, at the hearing on her motion to set aside judgments and orders. (Compendium, Ex. 6.) This court quashed these subpoenas as improper and lacking good cause. (Compendium, Ex. 7 at p. 5.) The court also denied Colosi's motion in the context of reconsideration because, "Colosi cites no new or different facts, circumstances, or law, and no basis on which the court would revisit any of its orders." (Id. at pp. 6–7.)

(3) The Hann Action

On June 5, 2020, Hann filed a civil complaint against Colosi for civil assault and battery, intentional infliction of emotional distress, and fraudulent transfer, styled Cynthia Hann v. Theresa Colosi, Santa Barbara Superior Court Case No. 20CV1984 (the Hann Action). After MBT was discharged from the Interpleader Action, Colosi filed cross-complaints in the Hann Action against MBT: a cross-complaint on April 19, 2024 (Compendium, Ex. 8); a first amended cross-complaint on June 11, 2024 (Compendium, Ex. 9); and a second amended cross-complaint (SACC) on March 3, 2025 (Compendium, Ex. 10). The causes of action against MBT in the SACC were premised on the allegations that MBT disclosed private information in response to a search warrant executed by the Santa Barbara County Sheriff directing MBT to turn over Colosi's financial records, which allegedly led to Colosi's arrest, conviction, and imprisonment. (Ibid.)

On September 29, 2025, the Court dismissed the SACC with prejudice following MBT's demurrer. (Compendium, Ex. 13.) With respect to Colosi's claims based on the search warrant in the Underlying Criminal Action, the court found that the claims were barred by the litigation privilege, failed to state specific facts against the MBT board members, and were also barred by the statute of limitations. (Compendium, Ex. 14 at pp. 6–8.)

(4) The May 2025 Action

On May 12, 2025, while Colosi's SACC in the Hann Action was still pending, Colosi

filed a complaint against MBT in an entirely new case for invasion of privacy and intentional infliction of emotional distress, styled *Colosi v. Montecito Bank & Trust et al.*, Santa Barbara Superior Court case No. 25CV02941 (May 2025 Action). (Compendium, Ex. 16.) Colosi's claims in the May 2025 Action were premised on the same allegations she was asserting in the Hann Action SACC, forcing MBT to demur. (Compendium, Exs. 10, 16.) On November 3, 2025, Colosi dismissed the complaint in the May 2025 Action without prejudice, but only after the Court dismissed the Hann Action SACC. (Compendium, Ex. 17.)

(5) The Current Action

On November 21, 2025, approximately two months after Colosi's claims in the Hann

Action SACC were dismissed with prejudice and 18 days after the May 2025 Action was voluntarily dismissed without prejudice, Colosi filed the present lawsuit against MBT and The Medical Board of California (Medical Board). In her complaint, Colosi asserts one cause of action titled as, "Invasion of Privacy, Unlawful Search and Seizure, and Unlawful Loss of Liberty alleged against both Defendants." (Compl.) Colosi realleges the same basic facts that formed the basis of her claims in the Hann Action SACC. (Ibid.) Colosi alleges, "[t]he named defendants' actions to invade plaintiff's privacy, to offer unlawfully obtained and false evidence in multiple proceedings, to unlawfully and proximately cause plaintiff's loss of liberty ... and to conduct numerous warrantless searches and seizures violates plaintiff's civil rights ... and displays outrageous private entity and government conduct." (Compl., ¶ 21.)

The complaint seeks redress from MBT and the Medical Board for alleged invasion of privacy, unlawful search and seizure, and unlawful loss of liberty. The complaint alleges that the search warrant in the Underlying Criminal Action was unlawful and that MBT's disclosures in response to an unlawful search warrant caused Colosi's incarceration and loss of liberty. (Compl., ¶¶ 2-21.) As alleged, "[o]n January 21, 2020, the Medical Board ... also used the 'warrantless' and deliberately false disclosures by MBT Solvang, and their derivatives, to initiate an Accusation against Dr. Colosi which is ongoing, including Dr. Colosi's request for relief in a Petition for Writ of Administrative Mandate." (Compl., ¶ 5.)

(6) The Court's March 27, 2026, Order Partially Staying this Action

On March 27, 2026, the court held a case management conference in this

action. All parties attended this hearing. The court stayed all other proceedings in this action pending the resolution of MBT's motion to declare Colosi a vexatious litigant and for related relief. Colosi opposed MBT's motion.

(7) The Court's June 5, 2026, Order Declaring Defendant Colosi a Vexatious Litigant and Setting the Medical Board's Pending Motion for Transfer of Venue

On June 5, 2026, the court granted MBT's motion for order declaring plaintiff Colosi a vexatious litigant, requiring Colosi to furnish security, and barring Colosi from filing further actions in propria persona without leave of court. The court also required that, on or before July 6, 2026, Colosi furnish a security for the benefit of MBT in the amount of \$15,000. In addition, the court set this hearing on the Medical Board's motion to transfer venue. Colosi opposes the Medical Board's motion and MBT opposes the motion only to the extent that the allegations against MBT may also be transferred.

(8) MBT's Motion to Sever

On June 11, 2026, MBT filed a motion to sever Colosi's case against MBT so that the allegations against MBT would not be transferred to Los Angeles. No party has filed an opposition to MBT's motion to sever although the Medical Board argues in that the transfer of venue to Los Angeles is mandatory.

Analysis:

(1) Motion to Transfer Venue

"The court may, on motion, change the place of trial in the following cases: [¶] (a) When the court designated in the complaint is not the proper court...." (Code Civ. Proc., § 397, subd. (a).) "If an action or proceeding is commenced in a court other than one designated as a proper court for the trial thereof by the provisions of this title, and the same is ordered transferred for that reason, the action or proceeding shall be transferred to a proper court upon agreement of the parties by stipulation in writing, or in open court and entered in the minutes or docket. If the parties do not so agree, the action or proceeding shall be transferred to a proper court in the county in which the action or proceeding was commenced which the defendant may designate or, if there is no proper court in that county, to a proper court, in a proper county, designated by the defendant. If the defendant does not designate the court as herein provided, or if the court orders the transfer of an action on its own motion as provided in this title, the action or proceeding shall be transferred to the proper court as determined by the court in which the action or proceeding is pending." (Code Civ. Proc., § 398, subd. (b).) "The designation of the court by the defendant as provided for in subdivision (b), may be made in the notice of motion for change of venue or in open court and entered in the minutes or docket at the time the order for transfer is made." (Code Civ. Proc., § 398, subd. (c).)

"Section 398 expressly provides that when an action commenced in the wrong court is ordered transferred for that reason, it must be transferred to the proper court as stipulated by the parties. Absent such stipulation, it must be transferred to the proper court in a proper county designated by the defendant. [Citation.] Only if the parties have not stipulated, or the defendant has not designated a proper county, may the court designate the county of transfer." (Cubic Corp. v. Superior Court (1986) 186 Cal.App.3d 622, 625 (Cubic Corp.).)

"If it appears from the complaint or affidavit, or otherwise, that the superior court or court location where the action or proceeding is commenced is not the proper court or court location for the trial, the court where the action or proceeding is commenced, or a judge thereof, shall, whenever that fact appears, transfer it to the proper court or court location, on its own motion, or on motion of the defendant, unless the defendant consents in writing, or in open court (consent in open court being entered in the minutes of the court), to the keeping of the action or proceeding in the court or court location where commenced." (Code Civ. Proc., § 396a, subd. (b).) The general venue statute is subject to exceptions "as otherwise provided by law." (Code Civ. Proc., § 395, subd. (a).)

The Medical Board has designated Los Angeles as the proper venue for this dispute and cited controlling authorities in support of its position. (Motion, p. 3, ll. 18-19, p. 3, l. 23 - p. 4, l. 23; see Medical Board RJN, Exs. 1-9.) "The office of the board shall be in the City of Sacramento. Suboffices may be established in the Cities of Los Angeles, San Diego, and San Francisco or the environs of such cities. Notwithstanding any other law, legal proceedings against the board shall be instituted in any one of these four cities. The board may also establish other suboffices as it may deem necessary and such records as may be necessary may be transferred temporarily to any suboffices." (Bus. & Prof. Code, § 2019.) "Unless otherwise expressly provided, the term 'board' as used in this chapter means the Medical Board of California." (Bus. & Prof. Code, § 2002.)

The court has reviewed the authorities presented by the Medical Board in addition to the responses by Colosi and MBT. Colosi's opposition merely restates her substantive positions set forth in her complaint. MBT's response requests that the claims against MBT not be transferred, but does not oppose the change of venue as to the claims against the Medical Board. The court agrees with the Medical Board. The court must transfer venue of this action to Los Angeles. (Cubic Corp., 186 Cal.App.3d at p. 625; Bus. & Prof. Code, §§ 2002, 2019; Code Civ. Proc., § 397, subd. (a); Code Civ. Proc., § 398, subds. (b), (c); Code Civ. Proc., § 395, subd. (a); Code Civ. Proc., § 396a, subd. (b).) For all these reasons, the court will grant the Medical Board's motion to transfer venue to Los Angeles.

(2) Motion to Sever

"All persons may be joined in one action as defendants if there is asserted against them: [¶] (1) Any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action; or [¶] (2) A claim, right, or interest adverse to them in the property or controversy which is the subject of the action." (Code Civ. Proc., § 379, subd. (a).) "It is not necessary that each defendant be interested as to every cause of action or as to all relief prayed for. Judgment may be given against one or more defendants according to their respective liabilities." (Id., subd. (b).) "Where the plaintiff is in doubt as to the person from whom he or she is entitled to redress, he or she may join two or more defendants, with the intent that the question as to which, if any, of the defendants is liable, and to what extent, may be determined between the parties." (Id., subd. (c).)

"When parties have been joined under Section 378 or 379, the court may make such orders as may appear just to prevent any party from being embarrassed, delayed, or put to undue expense, and may order separate trials or make such other order as the interests of justice may require." (Code Civ. Proc., § 379.5.) "The trial court has broad authority to sever the trials of properly joined parties 'as the interests of justice may require.' [Citation.] Similarly, the court may order separate trials of issues or causes of action 'in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy.'" (Pilliod v. Monsanto Co. (2021) 67 Cal.App.5th 591, 625, abrogated on other grounds at

Monsanto Company v. Durnell (U.S., June 25, 2026, No. 24-1068) 2026 WL 1825691 [609 U.S. ____; ____ S.Ct. ____].)

Here, the court does not find that the interests of justice requires severance prior to the mandatory transfer of venue. As alleged in the complaint, "the Medical Board ... also used the 'warrantless' and deliberately false disclosures by MBT Solvang, and their derivatives, to initiate an Accusation against Dr. Colosi which is ongoing, including Dr. Colosi's request for relief in a Petition for Writ of Administrative Mandate." (Compl., ¶ 5.) The complaint further alleges, "[i]n the course of the privacy invasion, MBT personnel also provided deliberately false information

that the SB-SO, the Santa Barbara County DA, and the Medical Board of California used as evidence in multiple legal proceedings." (Compl., ¶ 18.) The complaint alleges one cause of action against both MBT and the Medical Board. (Compl., p. 8, ll. 14-15.) The complaint alleges, "plaintiff had a Constitutionally and statutorily guaranteed expectation of privacy, and both defendants seriously invaded that privacy interest and widely publicized private financial information and highly prejudicial deliberate misinformation." (Compl., ¶ 16.) There are at least some common issues of law and fact as to Colosi's claims against both defendants in this action.

The court also finds that procedural confusion may arise if this action were split into two separate actions, one of which is transferred to another venue. Moreover, as to the convenience of the parties and witnesses, the court finds that the common issues of law and fact as well as the potential procedural problems with splitting this case into two separate actions in two separate venues outweigh any inconvenience to the parties as to the forum of Los Angeles. The court also finds that the issue of severance and separate trials is a proper decision for the transferee court rather than this court under the circumstances.

For all these reasons, the court declines to sever any part of this action prior to the transfer of venue to Los Angeles.

(3) The Medical Board's Request for Judicial Notice

The Medical Board requests that the court take judicial notice of the following documents:

1. Plaintiff's Certificate of Licensure with the Medical Board of California.
2. The Decision, In the Matter of the First Amended Accusation against Theresa

Colosi, M.D. before the Medical Board of California, Case No. 800-2019-058350, ordered December 26, 2024, and effective at 5:00 p.m. on January 24, 2025.

3. The Order dated March 7, 2025, denying the Petition for Reconsideration in In the Matter of the First Amended Accusation against Theresa Colosi, M.D. before the Medical Board of California, Case No. 800-2019-058350, with the Decision remaining effective at 5:00 p.m. on March 7, 2025.

4. Plaintiff's Petition for Writ of Mandate, Santa Barbara Superior Court Case No.

25CV03236.

5. Minute Order granting of Motion to Change Venue, Santa Barbara Superior Court Case No. 25CV03236 and transferring to matter to the Los Angeles County Superior Court.

6. Notice of Trial Setting Conference and Attached Orders thereon in Los Angeles

Superior Court Case No. 25STCP04327.

7. Final Decision Sustaining the Medical Board's Demurrer to Plaintiff's Petition for

Writ of Mandate, without leave to amend, in Los Angeles Superior Court Case No.

25STCP04327.

8. Notice of Ruling on Sustaining the Medical Board's Demurrer to Plaintiff's

Petition for Writ of Mandate, without leave to amend, in Los Angeles Superior Court Case No. 25STCP04327.

9. Order of Dismissal in Los Angeles Superior Court Case No. 25STCP04327.

The Medical Board submits this Request for Judicial Notice, the attached Memorandum of Points and Authorities, Declaration, and Exhibits in support of its Demurrer and Motion to Dismiss filed concurrently herewith.

There has been no opposition to the Medical Board's request for judicial notice. The Medical Board carried its burden on this issue. The court will grant the Medical Board's request for judicial notice. (See Evid. Code, §§ 452, subds. (c)-(d), 453.)

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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